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Case Number: 25STCP04485 Hearing Date: July 14, 2026 Dept: 400

SPECIAL MOTION TO STRIKE

The

Court tenders the following tentative decision in the matter Avis Copelin v. Andrew Ayala, Los Angeles County Superior Court case number 25STCP04485, set for hearing on June 2, 2026. Andrew Ayala (Respondent) moves to strike Avis Copelin's (Petitioner) first amended verified petition and complaint (FAC) pursuant to Code of Civil Procedure section 425.16. Petitioner opposes the motion. Respondent's motion is granted.

A.

Factual Summary

Petitioner brings the present action based on the withholding of annuity funds issued by Athene Annuity and Life Company (Athene) to Terry Gordon. (FAC ¶ 2.) Petitioner generally alleges that Athene, Respondent, and other individuals deliberately withheld the funds through a "sham interpleader theory, inflammatory filings, and repeated false statements regarding alleged internal and external investigations." (Id. ¶ 3.) Petitioner is the designated attorney-in-fact and agent for Gordon pursuant to a notarized power of attorney. (Id. ¶ 9.) Gordon is 87 years old and medically incapacitated. (Id. ¶ 10.) Respondent acted as counsel for Athene at all relevant times. (Id. ¶ 11.)

Gordon purchased the relevant annuity through other entities but it is now administered by Athene. (Id. ¶ 23.) It is valued at approximately \$318,000. (Id. ¶ 24.) On October 20, 2024, Gordon suffered a serious medical event that rendered him

incapacitated and requiring 24-hour care. (Id. ¶¶ 25–26.) In December 2024, Petitioner alleges that Respondent received the documents establishing Petitioner's power of attorney, a doctor's note discussing Gordon's condition, and a contract governing annuity withdrawal rights. (Id. ¶ 27.) Petitioner alleges that Respondent and Athene refused to release the annuity funds. (Id. ¶ 29.) Instead, they allegedly filed, maintained, or relied upon interpleader proceedings in bad faith for the purpose of delay and leverage. (Id. ¶ 36.) As a result, invoices became delinquent, and caregiver agencies terminated services. (Id. ¶ 33.)

Petitioner filed a verified petition on November 21, 2025, asserting causes of action for elder abuse, fraud, aiding and abetting, and injunctive relief. Respondents successfully demurred to that petition on March 3, 2026, and the Court granted leave to amend. The present FAC was filed on April 2, 2026. On May 4, Respondent filed his special motion to strike pursuant to section 425.16.

B.

Legal Standard

The anti-SLAPP statute provides a procedure for weeding out meritless claims arising from protected activity at an early litigation stage. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) Resolution of anti-SLAPP motions is a two-step process. First, the moving party must establish that the challenged causes of action arise from activity protected by section 425.16. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 712.) On a successful showing, the burden shifts to the responding party to demonstrate the claim's merit by establishing a probability of success on the merits. (*Baral*, *supra*, at p. 384.) "The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a *prima facie* factual showing sufficient to sustain a favorable judgment." (Id. at p. 384–85.) The responding party's evidence is accepted as true, and the moving party's evidence is considered only to determine if it defeats the responding party's claim as a matter of law. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 819–820.)

Activities protected by anti-SLAPP

Motions to strike include any acts "in furtherance of the person's right of petition or free speech under the United States Constitution or the California

Constitution in connection with a public issue.” (Code Civ. Proc., § 425.16, subd. (b)(1).) This includes: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Id., § 425.16, subd. (e).)

The moving party meets its burden of showing its activity is protected by demonstrating that the act underlying the responding party’s cause of action fits one of the categories in section 425.16, subdivision (e). (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78.) “In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by defendant supply those elements and consequently form the basis for liability.” (*Park v. Board of Trustees*, (2017) 2 Cal.5th 1057, 1063.) “A claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Verceles v. Los Angeles Unified School District* (2021) 63 Cal.App.5th 776, 784.)

“When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at [the first] stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached.” (Baral, *supra*, 1 Cal.5th at 396.) However, “if the allegations of protected activity are only incidental to a cause of action based essentially on nonprotected activity, the mere mention of the protected activity does not subject the cause of action to an anti-SLAPP motion.” (*Scott v. Metabolife International, Inc.* (2004) 115 Cal.App.4th 404, 414 (Scott).)

C.

Discussion

Respondent moves to strike all Petitioner’s

causes of action on the basis that they are based on protected activity and lack merit. The Court will address whether the complained of activity is protected under section 425.16, subdivision (e) before discussing whether Petitioner has demonstrated a probability of success on the merits.

Petitioner's causes of action arise from protected activity.

Respondent argues that Petitioner's claims arise out of protected activity. Protected activity includes "any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law." (Code Civ. Proc., § 425.16, subd. (e)(1).) Filing a lawsuit is "indisputably a statement or writing made before a judicial proceeding." (Navellier v. Sletten (2002) 29 Cal.4th 82, 90 (Navellier).) Additionally, attorney communications, filings, and litigation conduct undertaken through representation of a client are protected activity. (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 210 (Finton).)

Here, Petitioner alleges that Respondent instituted an interpleader proceeding, protected litigation activity. (FAC ¶ 36.) With respect to his cause of action for Elder Abuse, Petitioner alleges that Respondent assisted Athene in retaining the annuity proceeds by "participating in communications, litigation strategy, filings, delay, and false or misleading justifications for non-release." (FAC ¶ 54.) With respect to fraud, Petitioner alleges that Respondent falsely represented certain matters to courts with intent that the courts rely on those representations. (Id. ¶¶ 57–61, 68–70.) And in terms of aiding and abetting, Petitioner alleges that Respondent assisted Athene by "drafting filings, pursuing interpleader, making or repeating false and misleading assertions, resisting release of funds, creating delay, and defending the continued retention of property." (Id. ¶ 77.) Finally, Petitioner's cause of action for injunctive relief relies on these other claims. (Id. ¶¶ 95–98.) All these allegations concern protected activity under Finton, Navellier, and section 425.16, subdivisions (e)(1) and (e)(2) as statements made in connection with a judicial proceeding. Thus, Respondent has met his burden of demonstrating that Petitioner's claims arise out of protected activity. The burden thus shifts to Petitioner to demonstrate a probability of success on the merits

Petitioner has not demonstrated

a probability of success on the merits with respect to any claim.

Respondent argues that Petitioner cannot show a probability of prevailing on the merits regarding any of his claims because they are all premised on activity protected under the litigation privilege. A privileged publication is one made in any judicial proceeding. (Civ. Code, § 47, subd. (b).) This privilege is given broad application, held applicable to any qualifying communication and all torts except malicious prosecution. (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.) It applies to any communication “(1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (Ibid.)

Here, Petitioner's complained of conduct falls under the litigation privilege. Each cause of action cites Respondent's filings and statements made in the judicial interpleader proceeding. Respondent qualifies as a participant in that proceeding, and the filings and statements were made to achieve the litigation objectives. Petitioner maintains that the litigation privilege does not apply because Petitioner seeks liability for Respondent's general course of conduct rather than his protected speech. However, as discussed above and contrary to Petitioner's assertions, protected speech does form the crux of his claim. Petitioner alleges that Respondent falsely represented matters to courts, and that this led to pecuniary loss. (FAC ¶ 57.) And he alleges that Respondent's elder abuse occurred through the institution of a sham interpleader proceeding. (Id. ¶ 53.)

Moreover, Petitioner has presented little to no evidence in support of his claims. A party seeking to defeat an anti-SLAPP motion must present competent admissible evidence in support of their claims and may not rely solely on a verified complaint. (Oviedo v. Windsor Twelve Properties (2012) 212 Cal.App.4th 97, 112.) Petitioner merely offers a declaration from counsel asserting the existence of an annuity but including no evidence regarding the allegedly fraudulent conduct. (Copelin Decl.) Thus, Petitioner has not met his burden of proof. Accordingly, Respondent's motion is granted. The Court strikes Petitioner's FAC as to Respondent.

Conclusion:

The Court grants
Respondent's motion.